

STATE OF NEW YORK

843--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. MAY, COMRIE, FAHY, RIVERA, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Elections -- recommitted to the Committee on Elections in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the election law, in relation to establishing minimum staffing levels for certain local board of elections

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 3-300 of the election law is amended to read as
2 follows:

3 § 3-300. Board employees; appointment. 1. Every board of elections
4 shall appoint, and at its pleasure remove, clerks, voting machine tech-
5 nicians, custodians and other employees, fix their number, prescribe
6 their duties, fix their titles and rank and establish their salaries
7 within the amounts appropriated therefor by the local legislative body
8 and shall secure in the appointment of employees of the board of
9 elections equal representation of the major political parties.

10 2. Every board of elections of a county that includes over ten thou-
11 sand active registered voters shall employ, at a minimum, four full-time
12 employees inclusive of any full-time commissioners and full-time depu-
13 ties. Every board of elections shall employ two additional employees for
14 every full allotment of twenty thousand active registered voters under
15 its jurisdiction. Any board of elections below the minimum number of
16 employees required by this subdivision shall hire two additional full-
17 time employees annually until the minimum requirement is met, provided
18 that the minimum requirement is met within three years of the effective
19 date of this subdivision.

20 3. Every commissioner in each board of elections except for commis-
21 sioners of the board of elections of the city of New York, may approve

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD03492-03-6

1 and at pleasure remove a deputy, establish [~~his~~] their title and
2 prescribe [~~his~~] their duties. In the city of New York, the board of
3 elections shall appoint an executive director and a deputy executive
4 director whose duties it shall be to supervise the operations of the
5 board of elections under the supervision of such board.
6 § 2. This act shall take effect immediately.